

trustees applied to the Court, they may be made to bear them personally (*a*).

61. **Duties of executor after institution of suit.**—Even after a decree made the trustee is not absolved from the duties imposed by his office. Thus after a decree in an administration suit an executor was held liable for having allowed a policy of insurance to drop without any sufficient reason (*b*).

## SECTION II.

### THE SPECIAL POWERS OF TRUSTEES.<sup>1</sup>

Upon this branch of our subject we shall consider, *First*, The different kinds of powers; *Secondly*, The construction of powers; *Thirdly*, The effect of disclaimer, assignment of the estate, and survivorship among the trustees; *Fourthly*, The control of the Court over the exercise of powers; [and *Fifthly*, The restrictions on the powers of trustees imposed by the Settled Land Acts.]

(*a*) Attorney-General v. Clack, 1 Beav. (b) Garner v. Moore, 3 Drew. 277. 467; and see Cafe v. Bent, 3 Hare, 249.

<sup>1</sup> *Special powers.*—These must be strictly executed, according to their terms; Alley v. Lawrence, 12 Gray, 373; Ladd v. Ladd, 8 How. 30; a power of sale may be executed by the surviving trustee, or other person acting in a fiduciary capacity; Parker v. Sears, 117 Mass. 513; Gould v. Mather, 104 Mass. 283; Jackson v. Given, 16 Johns. 167; Putnam School v. Fisher, 30 Me. 526; Sharp v. Pratt, 15 Wend. 610; Hunt v. Rousmaniere, 2 Mason, 244. There are local statutes controlling in many states, but these may or may not apply to directory powers; Mallet v. Smith, 6 Rich. Eq. 22; Clay v. Hart, 7 Dana, 1; Taylor v. Morris, 1 Const. 341; this depending upon whether the settlor intended to give such an elastic power to particular individuals, or to any who might chance to hold the office of trustee; Shelton v. Homer, 5 Met. 462; Loring v. Marsh, 6 Wall 337; Gray v. Henderson, 71 Pa. St. 368; Ferre v. American Board, 53 Vt. 171; Alley v. Lawrence, 12 Gray, 373; Peterson's App. 88 Pa. St. 397; Gould v. Mather, 104 Mass. 286. There may be a power of sale by implication; Peter v. Beverly, 10 Pet. 532; Gray v. Henderson, 71 Pa. St. 368; Meakings v. Cromwell, 2 Sandf. 512.

If new trustees are appointed, the powers exercised by their predecessors will not necessarily extend to them; Burdick v. Goddard, 11 R. I. 516; but statutes in some instances provide for this; Murray v. Dehon, 102 Mass. 11.

Special as well as general powers may be discretionary; Loring v. Blake, 98 Mass. 253; Lyman v. Parsons, 26 Conn. 493. Courts may interfere to control the exercise of powers; Druid Park Heights Co. v. Oettinger, 53 Md. 63; Trustees v. Northampton, 10 Allen, 498; and so too if a trustee cannot